

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

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W.P.NO.1891 OF 2020

MIRZA SHAHZEB.

Versus

CITY POLICE OFFICER, ETC.

JUDGMENT

Dates of hearing: **15th & 16th December, 2022**

Petitioner by: Mirza Saqib Siddique, Advocate.

Respondents by: M/s Malik Abdul Aziz Awan, Addl. Advocate General, Mushtaq Ahmad Mohal, Addl. Advocate General, Tallat Mehmood Khan, Assistant Advocate General and Amna Ali, Assistant Advocate General for Punjab with Shazia, DSP (Legal), Hassan Askari, Inspector and Anjum Ramzan, ASI/OSI.

MIRZA VIQAS RAUF, J. This petition alongwith W.P.No.1437 of 2021 is before us by the orders of the Hon'ble Chief Justice in pursuance to the order dated 22nd February, 2022, which is re-produced below for the purpose of convenience: -

“The petitioner applied for the post of Constable in Police Department and as per his stance, he has though qualified all the requisites for the test but his candidature was rejected mainly on the ground that he has concealed his previous involvement in a criminal case while submitting an affidavit.

2. The petition was admitted for regular hearing vide order dated 02nd March, 2021, while relying upon on *Sheikh MUHAMMAD AKRAM v. ABDUL GHAFOR and 19 others (2016 SCMR 733)* and *ABDUL SALAM v. INSPECTOR GENERAL OF POLICE, PUNJAB and 2 others (2019 PLC (C.S) 503)*.

3. Learned Law Officer while placing reliance on the case of *ABDUL MANAN v. PROVINCIAL POLICE OFFICER and 2 others (2017 PLC (C.S) 862)* submits that in a similar circumstances, a learned Division Bench of this Court has

upheld the order dated 19th January, 2017, passed in W.P.No.1280/2015 resulting into rejection of the candidature of the candidate on the basis of submission of a false affidavit.

4. It appears that the judgment in the case of ABDUL SALAM v. INSPECTOR GENERAL OF POLICE, PUNJAB and 2 others (2019 PLC (C.S) 503) was also upheld by a learned Division Bench of this Court in ICA No.765 of 2019 through judgment dated 26th February, 2019. So far as judgment in the case of Sheikh MUHAMMAD AKRAM v. ABDUL GHAFUOR and 19 others (2016 SCMR 733) is concerned, that is primarily relatable to an election dispute and has no direct nexus with the proposition in hand.

5. From the above, it can safely be inferred that there is a disparity in the judgment of this Court with regard to the matter in issue, which requires resolution through a larger Bench. In this view of the matter, office is directed to place this petition alongwith connected petition before the Hon'ble Chief Justice for the said purpose."

2. Mirza Shahzeb (petitioner) and Imran Raza (co-petitioner) have applied for the post of constable in Punjab Police Department but their candidature was rejected solely on the ground that they have concealed their previous involvement in criminal case at the time of submission of application form. As the matter in issue in both the petitions is not only similar and akin but precise one, so we would refrain from delving into complexity of the facts. The instant petition was admitted for regular hearing vide order dated 2nd March, 2021 in the following manner:-

"This petition canvasses the following prayer: -

In view of the circumstances narrated above, it is respectfully prayed that the Honorable High Court by graciously allowing the present petition may be pleased:-

- i. *To order the Respondents to issue appointment letter & joining order to the petitioner.*
- ii. *To order the Respondents to allow the petitioner to join training started on 04.03.2019 as the similar issues had been resolved by the Honorable courts of the country in the favour of the petitioners.*
- iii. *To annulled the order of Respondent No.1 dated 06.04.2019 & 28.02.2020.*
- iv. *To Declared the S.No.23 of Standing Order No.06/2015 of Respondent No.04 as mentioned by Respondent No.01 in his order on S.no.06 being violative of fundamental rights of the petitioner.*
- v. *To allow any other appropriate relief which is deemed appropriate?*
- vi. *Cost may also be awarded.*

2. Learned counsel for the petitioner inter-alia contends that the petitioner applied for the post of constable in the police department. Adds that he was though on merit but his candidature was rejected merely on the ground that he concealed his previous involvement in a criminal case. Maintains that the petitioner was though involved in a criminal case but he was acquitted by the Court of competent jurisdiction. Submits that the petitioner's candidature has been rejected in an illegal and unlawful manner. In order to supplement his contentions, learned counsel places reliance on Sheikh MUHAMMAD AKRAM v. ABDUL GHAFUOR and 19 others (2016 SCMR 733) and ABDUS SALAM v. INSPECTOR GENERAL OF POLICE, PUNJAB and 2 others (2019 PLC (C.S) 503)

3. Points raised need consideration. Admit. Notice."

The connected petition was also admitted vide order dated 27th April, 2021 on the same grounds. In response to these petitions, the respondents have submitted their report and parawise comments (written statements).

3. We have heard learned counsel for the petitioners as well as learned Law Officers at considerable length and perused the record.

4. The petitioners herein considering themselves to be eligible for the post of constable in Punjab Police Department applied on a printed application form in pursuance to the advertisement published in prominent newspapers in this behalf. The candidature of the petitioners was, however, rejected solely on the ground that they have concealed the factum of their involvement in criminal case. It is an admitted position on all ends that both the petitioners have remained involved in criminal case though they ultimately earned acquittal therefrom. Previously, while dealing with a similar proposition, one of the learned Division Bench of this Court in the case of ABDUL MANAN v. PROVINCIAL POLICE OFFICER and 2 others (2017 PLC (C.S.) 862) held as under: -

5. Admittedly the Appellant has not mentioned the fact of criminal case against him at the time of submission of application form for the post of Constable in the Punjab Police and has made concealment of fact. From the perusal of record it reveals that none else but the Appellant himself has stated on oath that he has not been involved in any type of criminal activities, therefore, the learned Single Judge has rightly dismissed the writ petition of the Appellant. In the impugned order reliance has also been made by the learned Single Judge on an order dated 18.02.2013 passed by

the Hon'ble Supreme Court of Pakistan in C.Ps.Nos.1668-L and 1852-L of 2012 in which it has been held as under:

"Admittedly when the Respondent/ Petitioner Jabir Ali gave his application to the department for recruitment into police service, three FIRs were pending against him and hence he falsely stated in such application that he was not involved in any criminal case. A police official should be honest and law abiding himself and subject to discipline. Where, at the inception of his career, respondent/Petitioner had made a false statement for the purpose of recruitment into the force, he cannot be expected to perform his duties honestly and diligently. Hence, he was correctly dismissed from service by the department authority."

From the above, it is evident that the misstatement on the part of the Appellant before entering into service itself shakes the credibility of his character and disentitles him from any relief. Reliance has also been placed by the learned Single Judge on the cases titled Rehmat Din and others v. Mirza Nasir Abbas and others (2007 SCMR 1560) and Mst. Azra Parveen v. Pakistan Cricket Board through Chief Executive and 2 others (2005 YLR 1469).

Later on, in the case of ABDUS SALAM v. INSPECTOR GENERAL OF POLICE, PUNJAB and 2 others (2019 PLC (C.S.) 503) a learned single Bench of this Court formed a contrary view to the following effect: -

7. No doubt the petitioner was nominated in the aforementioned case FIR No.50/16, but during investigation the Investigating Officer found him innocent and while submitting incomplete challan in the Court placed his name in column No.2. According to the opinion of the Investigating Officer as given in the incomplete challan/report under section 173, Cr.P.C. the petitioner was only found present at the place of occurrence. During investigation the allegation of involvement of the petitioner in the alleged occurrence was not proved on record. It is thus manifest that case of the petitioner does not come within the restrictions imposed by the competent Authority through the aforesaid policy letter. The petitioner never faced any trial in the said criminal case. His involvement was not proved on record during investigation or as a result of any criminal trial by the competent court of law. Someone's "nomination" cannot be equated with "involvement" in a criminal case. A person is nominated in a criminal case FIR on the mere statement/application of the complainant, the contents whereof may be correct or incorrect and baseless. On the contrary, involvement of an accused in a criminal case is prima facie established on the basis of investigation and collection of incriminating information to hold the accused guilty or otherwise by the Investigating Officer and then the matter is sent for trial by a competent court of law. So, mere nomination of any person in any FIR does not mean that he is involved in the occurrence. In this regard bracketed words "either under trial or acquitted on multiple grounds" mentioned in the Recruitment Policy letter are of much significance. An analytical approach of these words indicates that in the matter of holding a person to be involved in a criminal case his facing "trial" and even consequential "acquittal on

multiple grounds" is a sine qua non. In the Recruitment Policy determination of involvement in a criminal case has not only been subjected to trial of the said case but also stretched to the consequential acquittal on multiple grounds. Nothing of the above happened in the case of the present petitioner. He was merely nominated by his opponents, apparently with mala fide intent to falsely implicate him in the criminal case, however, on preliminary inquiry the investigating officer found him to be not involved in the occurrence, hence placed him in column No.2 of the challan submitted in the Court under section 173 of the Cr.P.C. In these circumstances, the respondents have wrongly held the petitioner to be involved in a criminal case disentitling him to his legitimate right of appointment on merit. I am, therefore, of the view that the petitioner at the time of submitting application Form for appointment as Constable has not concealed any fact or given any wrong affidavit. The respondents were not thus justified in refusing his appointment as Constable on such grounds and reasons which were not sustainable in the eye of law.

It is apparent from the record that judgment in the case of ABDUL MANAN v. PROVINCIAL POLICE OFFICER and 2 others supra was never brought in the notice of the learned Single Bench. Though the judgment of the learned Single Bench was further affirmed by the learned Division Bench of this Court in I.C.A No.765 of 2019 but we have noticed that the I.C.A was dismissed being barred by time without attending the merits of the case.

5. It is trite law that earlier if a view is formed by a Bench of the Court, it shall be binding for the Bench comprising of same number of Judge/Judges and if some Bench of similar nomenclature is desirous to form another view then latter has to send the matter to the Hon'ble Chief Justice for constitution of larger Bench. Guidance in this respect can be sought from Messrs WAK LIMITED MULTAN ROAD, LAHORE v. COLLECTOR CENTRAL EXCISE AND SALES TAX, LAHORE (NOW COMMISSIONER INLAND REVENUE, LTU, LAHORE) and others (2018 SCMR 1474). The relevant extract from the same is reproduced below: -

3. We have considered the arguments of the learned ASCs for the parties addressed at the Bar. We are, prima facie, of the view that where section 47 of the Sales Tax Act itself is clear and the other provisions which are in pari materia with section 47 of the Sales Tax Act have already been interpreted in a good number of three-member bench judgments, another three-member bench of this Court could not have dissented from the earlier judgment without referring the matter to a larger bench. It has been settled as back at 1995 in the case of Multilines Associates v. Ardeshir Cowasjee and 2 others (PLD 1995 SC 43) that an earlier judgment

of equal bench of the High Court on the same point is binding on the subsequent bench and if the subsequent bench tends to take a different view, it has to request for the constitution of larger bench. This principle was also reiterated in the case of *Ardeshir Cawasjee v. Karachi Building Control Authority* (1999 SCMR 2883) by holding as under:-

"Before concluding the above judgment we may refer to the conflict of views between the two judgments of this Court in the case of *Abdul Razak v. Karachi Building Control Authority and others* (PLD 1994 SC 512) (supra) and *Multiline Associates v. Ardeshir Cowasjee and others* (PLD 1995 SC 423), (also reported in 1995 SCMR 362) (supra) noticed in the leave granting order which is to be resolved. The former case was decided on 31.3.1994 by a Bench comprising Ajmal Mian, Sajjad Ali Shah and Saleem Akhtar, JJ. (as then they were), whereas in the latter case judgment was rendered on 22.1.1995 by a Bench comprising Sajjad Ali Shah, C.J., Mir Hazar Khan Khoso and Muhammad Munir Khan, JJ. (as then they were). It appears that while deciding the latter case notice of the above earlier judgment of Abdul Razak was not taken though, according to Mr. Naimur Rehman, the same was cited. It may be pointed out that a Bench of the same number of Judges of the same High Court, or of the Supreme Court, cannot deviate from the view of an earlier Bench as rightly has been held in the case of *Multiline Associates v. Ardshir Cowasjee and others* (PLD 1995 SC 423) (supra) in relation to the High Court."

Another question which has been raised by the learned ASC for the petitioner is that if an order is not passed within 45 days and then within 90 days despite extension in terms of the proviso to section 36(3) of the Sales Tax Act, it could not be passed subsequently. Learned ASC for the petitioner in support of his contention placed reliance on the case of *The Collector of Sales Tax Gujranwala and others v. Messrs Super Asia Mohammad Din and Sons and others* (2017 PTD 1756). We with due deference do not find ourselves in agreement with the interpretation placed on the said provision because the intent behind the said provision of the Act, as far as we are capable to understand it, is to ensure expeditious disposal of case and not an outright extinguishment of the tax liability. Such interpretation cannot be accepted when it also tends to open room for escape of tax liability through official and Institutional manipulations. Even otherwise when no consequence for neglect to comply with the said provision has been given in the statute, it cannot be construed as mandatory on any account and by any attribute.

To the above effect, we can also seek guidance from the cases of FEDERATION OF PAKISTAN and others v. Mian MUHAMMAD NAWAZ SHARIF and others (PLD 2009 Supreme Court 284), CHAIRMAN, STATE LIFE INSURANCE CORPORATION and others. v. HAMAYUN IRFAN and 2 others (2010 SCMR 1495), SINDH HIGH COURT BAR ASSOCIATION through its Secretary and another v. FEDERATION OF PAKISTAN through Secretary, Ministry of Law and Justice, Islamabad and others (PLD 2009 Supreme Court 879), NATIONAL BANK OF PAKISTAN through Chairman v. NASIM ARIF ABBASI and others (2011 SCMR 446), Messrs AL-MAHMUDIA (PVT.) LTD. v. PAKISTAN through Secretary, Ministry of Housing and Works, Islamabad and others (PLD 2007 Supreme Court 79).

6. After having an overview of the above referred principles of law, we are of the candid opinion that judgment in the case of ABDUS SALAM v. INSPECTOR GENERAL OF POLICE, PUNJAB and 2 others supra is clearly a departure from the said principles and is *per incuriam*.

7. Adverting to the principles laid down in the case of Sheikh MUHAMMAD AKRAM v. ABDUL GHAFOOR and 19 others (2016 SCMR 733), we have noticed that facts in the said case run on entirely different footings. In the said case, the returned candidate failed to disclose a pending case of rash driving in his nomination papers on account of which the Hon'ble Apex Court held that the returned candidate could not be de-seated in terms of Section 76A of the Representation of the People Act, 1976 on account of such non-disclosure as the criminal case was not a very serious offence being basically a traffic offence. We are mindful of the fact that the requirements under section 76A of the Representation of the People Act, 1976 are entirely different, thus, the principles of said case with all reverence cannot be pressed into service.

8. The Police Department is a law enforcement agency performing very pivotal role in multiple characters in the society. The police have an obligation and duty to function according to the Constitution, law and democratic aspirations of the people. Such

functioning of the police requires it to be professional, service-oriented and accountable to the people. It is, thus, necessary to maintain high standards for making appointments in the police. Volume II Chapter XII of the Police Rules, 1934 deals with the appointment and enrollments. Rule 12.12 of the Rules *ibid* ordains that the standard of performance and the reputation of the whole police force depend above all-upon the quality of its constables. For ready reference and convenience, Rule 12.12 is reproduced below: -

12.12. Supervision of recruitment. The standard of performance and the reputation of the whole police force depend above all-upon the quality of its constables. Standards for recruits are laid down in the rules which follow, but, over and above these, constant attention and effort to raise the general standard of recruitment fare essential. Gazetted officers shall at all times devote special attention to discovery and encouraging men of thoroughly good stamps to enroll themselves. Efforts shall be made to enroll a proportion of men belonging to communities or classes, whose representation in the force is desirable, but who appear reluctant to offer themselves. The examination and measuring of candidates for enrolment shall invariably be carried out by a gazetted officer, who shall concern himself specially to prevent the victimization of, or the taking of illegal gratification from, candidates by subordinate Government servants concerned in the conduct of their examination. Superintendents shall personally satisfy themselves that the arrangements for the reception of new recruits in the Lines, and for providing them with bedding and warm clothing, whether as a sanctioned Government issue or under a system whereby the cost is recovered later in installments from pay, are adequate, and that recruitment is not discouraged by initial and avoidable hardships. Deputy Inspectors-General, in addition to exercising a careful control over recruitment generally, and preventing the enrolment of undesirable types, shall, at their inspection, formal and informal, pay special attention to the observance of this rule.”

In furtherance to the above, Rule 12.14 makes it incumbent that recruits shall be of good character and great care shall be taken in selecting men of a type suitable for police service from the candidates presenting themselves for enrollment.

9. In order to reconstruct the police for efficient prevention and detection of crime and maintenance of public order, the Police Order, 2002 was promulgated. Chapter III deals with the constitution and organization

of the police. Article 7 lays down the mechanism for the constitution of police in the following manner: -

7. Constitution of police.-- (1) The police establishment for each general police area shall consist of such numbers in the senior and junior ranks and have such organization as the Government may from time to time determine.

(2) The recruitment criteria, pay and allowances and all other conditions of service of the police shall be such as the Government may from time to time determine.

(3) The recruitment in the police other than ministerial and specialist cadres shall be in the rank of Constable, Assistant Sub-Inspector and Assistant Superintendent of Police:

Provided that selection for direct recruitment in the rank of Assistant Sub-Inspector shall be through the appropriate Public Service Commission and shall not exceed twenty-five percent of total posts in that rank:

Provided further that 25% of the quota for departmental promotions to the rank of Assistant Sub-Inspector shall be filled, subject to rules, through selection by the appropriate Public Service Commission from graduate Constables or Head Constables of clean record.

(4) The recruitment in the rank of Assistant Superintendent of Police shall be through the Federal Public Service Commission on all Pakistan basis.

(5) The recruitment in the rank of Constable and Assistant Sub-Inspector shall be on the basis of the district of domicile which for all service matters shall be their administrative unit upto the rank of Deputy Superintendent of Police and only such officers shall be posted to their district of domicile for field assignments. There will be no such bar on the posting of officers of other districts for investigation, traffic, security, reserve, and intelligence duties. Subject to rules, Inspectors and Deputy Superintendents of Police shall be promoted on the basis of provincial seniority.

(6) Every police officer while on police duty shall have all the powers and privileges of a police officer throughout Pakistan and be liable to serve at any time in any branch, division, bureau and section.”

Article 10 deals with the administration of police and in terms of sub-article 3 of Article 10, the police officer mentioned in clause (1) may for direction and control issue standing orders not inconsistent with the Order or Rules made thereunder for the efficient functioning of the police.

10. In furtherance of the above said provision, Standing Order No.6 of 2015 was issued by the Government of the Punjab, Police

Department and in terms of para 23 of the Standing Order, candidates having criminal record or affiliation with any proscribed organization were debarred to be appointed. Through memo dated 1st June, 2018, an amendment was introduced in para 23 of the Standing Order No.6 of 2015 to the following effect: -

- i) All the candidates submit an affidavit for non-involvement in criminal cases at the time of submission of application forms.
- ii) If the case is registered against an applicant after the last date of submission of application form, but the applicant is not challaned & declared innocent; then that would not be a ground for rejection of an applicant. However, DPO must examine that case is not cancelled or accused declared innocent due to compromise between parties.

In view of above, all the candidates at the time of moving an application for their appointment as constable were obliged to submit an affidavit qua non-involvement in criminal cases at the time of submission of application forms.

11. We have noticed that in the application forms of the petitioners, following was one of the conditions: -

حلف نامہ۔۔۔ میں حلفاً بیان کرتا/کرتی ہوں کہ مندرجہ بالا کوائف درست ہیں اور میں کسی قسم کے جرم یا
تخریبی کاروائی میں گرفتار/چالان/سزایافتہ یا ملوث نہ رہا/رہی ہوں۔ میں اپنی سابقہ ملازمت
میں سزایافتہ نہ ہوں اور باعزت طور پر رہا/رہی ہوں نیز میں کسی بھی خطرناک بیماری میں
مبتلا نہ ہوں۔

It is an admitted fact that the petitioners have though remained involved in criminal cases but they did not mention this material fact in the application forms.

12. So far contention of learned counsel for the petitioners that it was not an intentional concealment on the part of petitioners rather they were misled on account of ambiguous condition and at the most this omission can be treated as misstatement, which cannot be made basis for rejection of their candidature, it is observed that the terms “concealment” and “misstatement” are not so different and apart from each other. In order

to understand real meaning and import of both the terms, we can have a recourse to the prominent law dictionaries.

“Concealment”

Black’s Law Dictionary TENTH EDITION	1. The act of preventing disclosure or refraining from disclosing: esp., the injurious or intentional suppression or nondisclosure of facts that one is obliged to reveal; COVER-UP. 2. The act of removing from sight or notice; hiding. 3. Insurance. The insured’s intentional withholding from the insurer material facts that increase the insurer’s risk and that in good faith out to be disclosed. Cf. NONDISCLOSURE.---conceal, vb. “Concealment is an affirmative act intended or known to be likely to keep another from learning of a fact of which he would otherwise have learned. Such affirmative action is always equivalent to a misrepresentation and has any effect that a misrepresentation would have.
The Chambers Dictionary 12 th Edition.	Hiding; keeping secret; secrecy; disguise; a hiding place; a mystery (archaic).
Merriam-Webster’s Collegiate Dictionary Eleventh Edition	1. to prevent disclosure or recognition of the truth. 2. To place out of sight.
Oxford Advanced Learner’s Dictionary International Student’s Edition	The act of hiding sth; the state of being hidden:

“Misstatement”

The Chambers Dictionary 12 th Edition.	To state wrongly or falsely
Merriam-Webster’s Collegiate Dictionary Eleventh Edition	To state incorrectly: give a false account of

13. We feel no hesitation to reiterate that the petitioners at the time of submission of their application forms have admittedly concealed their previous involvement in criminal cases. Disclosure of involvement in some offence was a material fact and it was not expected from the petitioners, who were to join the police department to hide such material fact. A police official should always be honest and law abiding. It is not expected from a police man to get himself recruited in the department through misrepresentation, misstatement or false statement. To this effect,

we are also fortified with the unreported judgment of the Hon'ble Apex Court in Civil Petitions No.1668-L and 1852-L of 2012. The relevant extract from the same is reproduced below: -

“6. Admittedly when the Respondent/Petitioner Jabir Ali gave his application to the department for recruitment into police service, three FIRs were pending against him and hence he falsely stated in such application that he was not involved in any criminal case. A police official should be honest, and law abiding himself and subject to discipline. Where, at the inception of his career, Respondent/ Petitioner had made a false statement for the purpose of recruitment into the force, he cannot be expected to perform his duties honestly and diligently. Hence he was correctly dismissed from service by the departmental authorities.”

14. For the foregoing reasons, we see no merits in these petitions. Resultantly same are dismissed with no order as to costs.

(Sadaqat Ali Khan)
Judge

(Mirza Viqas Rauf)
Judge

(Jawad Hassan)
Judge

Approved for reporting.

(Judge)

(Judge)

(Judge)